

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

PETER HOLT THOMPSON,

Respondent

) Case Number: FCS-22-355569

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

CUSTODY AND PARENTING TIME REVIEW FOLLOW FATHER'S MOVE

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 9AM on 8/6/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Peter Holt Thompson (Father) and Katie Anne Roberts (Mother) have one minor child together, Fin, age 5 (DOB 3/4/2021). On 12/6/2022, the parties agreed to share joint legal and joint physical custody of Fin, with 3 weekly overnights for Father and additional times by mutual agreement. The parties also agreed to a 3-hour right of first refusal and a holiday schedule. (See Stipulation and Order filed 12/12/2022.)
- 2) In a Findings and Order After Hearing filed 11/26/2025, the Court ordered that beginning April 2026, Father shall have parenting time every Wednesday afternoon from school pick up (or 3pm if no school) until Friday morning school drop off (or 9am if no school) and every other weekend from Friday afternoon school pick up (or 3pm if no school) until Sunday at 3pm. The Court issued additional orders relating to modification of parenting time, right of first refusal, extracurriculars, and travel.

- 1 3) On 5/28/2026, after a 2-afternoon evidentiary hearing, the Court denied Father's request to move
2 Fin's primary residence from San Francisco to Alameda County. The Court ordered the parties to
3 attend mediation on 7/16/2026 to discuss what parenting time schedule they would like to have
4 after Father moves to Alameda County. The Court set a hearing for 8/6/2026 in the event the
5 parties were unable to reach an agreement at mediation and ordered the parties to file and serve
6 update declarations at least 10 days before the 8/6/2026 hearing informing the Court of their
7 respective proposals for parenting time.
- 8 4) The parties attended mediation and were unable to reach an agreement.
- 9 5) Neither party has filed an update declaration informing the Court of their respective proposals for
10 parenting time.

11 **B. Findings and Orders**

- 12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child is the United States.
- 16 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 8/6/2026 in**
17 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DEBRA TILLMAN,

Petitioner

VS.

LAWRENCE E WILSON,

Respondent

) Case Number: FDI-02-751765

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD SUPPORT DETERMINATION OF ARREARS; REQUEST FOR
DIRECT CARE CREDITS FILED MAY 12, 2026 -

BY RESPONDENT LAWRENCE WILSON

TENTATIVE RULING

**The parties are ordered to appear in-person or via Zoom video at 9AM on 8/6/2026 in
Department 404. Mother shall confirm whether she received a copy of Father's Request for Order
filed 5/12/2026 and whether she opposes Father's request. Mother shall also be prepared to explain
what amount in child support arrears, if any, she believes Father currently owes.**

**If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for
Remote Appearance in San Francisco Family Court set forth above.**

A. Procedural History

- 1) Petitioner Debra Tillman (Mother) and Respondent Lawrence Wilson (Father) have one adult child, Brittney (DOB: 7/17/1999, age 27).
- 2) On 10/3/2008, a Judgment of Dissolution was entered. The Judgment provides in relevant part, "The parties stipulate that Mother...shall be awarded sole legal and physical custody of Brittany [sic.]... Father[']s visitation shall be by mutual agreement of the parties... The Department of

1 Child Support Services is addressing the issue of child support... The most recent order is for
2 Father to pay \$379/month.”

- 3 3) No additional orders were made and neither Mother nor Father filed a Request for Order
4 following entry of the 10/3/2008 Judgment, until Father filed the instant Request for Order.
- 5 4) On 5/6/2026, the Department of Child Support Services filed a Notice Regarding Payment of
6 Support, substituting out as the child support payee in this case.
- 7 5) On 5/12/2026, Father filed the instant Request for Order. Father is self-represented. Father states,
8 “The amount of child support arrears is incorrect because the child in question...resided with
9 myself, Lawrence Wilson, from the years of 2012 – 2017 for all of high school... I request the
10 Court to review the child support arrears in this case and to adjust the balance. If I have made an
11 overpayment, I request the Court to order reimbursement for overpayment of child support...
12 During the time of Britteny[’s]... residency with Lawrence Wilson, all bills including but not
13 limited to rent, utilities, food were all paid by Lawrence Wilson. Pursuant to Jackson, I request
14 the Court to discharge the child support owed for the period that our child...was living with me.”
- 15 6) Father’s Request for Order was erroneously first set in Dept. 414 on 6/23/2026. On that date,
16 Father appeared in Dept. 414 before Commissioner Rahim. Mother did not appear. Commissioner
17 Rahim set a future hearing date of 8/6/2026 in Dept. 404 and reminded Father to serve his
18 Request for Order as well as the Transfer Order with the new hearing date. Commissioner Rahim
19 also reminded Father to check the Tentative Ruling 2 PM the Court day before the 8/6/2026
20 hearing date.
- 21 7) On 6/23/2026, an Order Re: Transfer Hearing was entered setting Father’s Request for Order for
22 Determination of Arrears and Request for Direct Care Credits on 8/6/2026 at 9:00 AM in Dept.
23 404. That order was mailed to Father by the Court that same day.
- 24 8) Per the Proof of Personal Service filed 7/20/2026, the Order Re: Transfer Hearing and Tentative
25 Ruling Instructions were personally served on Mother by a sheriff on 7/16/2026. The Proof of
26 Personal Service does not indicate that Father’s Request for Order filed 5/12/2026 was served on
27 Mother.

B. Findings and Order

- 1) **The parties are ordered to appear. Mother shall confirm whether she received a copy of Father's Request for Order filed 5/12/2026 and whether she opposes Father's request. Mother shall also be prepared to explain what amount in child support arrears, if any, she believes Father currently owes.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SHARLENE THOMPSON JOHNSON,

Petitioner

VS.

RICHARD DEWAYNE JOHNSON,

Respondent

) Case Number: FDI-24-799681

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Sharlene Johnson (Mother) and Respondent Richard Johnson (Father) married on 8/20/2011. Mother states the parties' date of separation is "TBD." Father has not filed a Response to the Petition for Dissolution, although he has actively participated in this case. The parties have one minor child, Syleena (DOB: 2/2/2013, age 13). Mother is represented by attorney Aylin Acikalin. Father is self-represented.
- 2) At a hearing on 8/16/2024 (per the Findings and Order After Hearing filed 8/19/2024), Judge Costin made orders enjoining Land Home Financial Services (which had previously been joined as a party to these proceedings) and Father from transferring or disposing of the property located at 435 W. 4th St. in Pittsburg, CA by foreclosure sale. Judge Costin further ordered Father to vacate the property within 60 days, the parties to list the property for private sale, and the proceeds from the sale to be held in an interest-bearing escrow account.
- 3) At a status hearing on 12/8/2025, Mother's attorney informed the Court that the property had sold approximately one month earlier and that the proceeds were being held in escrow.

- 1 4) Now on for hearing is Father's ex parte Request for Order filed 7/6/2026 asking the Court for an
2 immediate distribution of \$40,000 from the escrow account holding the proceeds from the sale of
3 the marital residence. Father states that in June 2025 he was involved in a severe pedestrian motor
4 vehicle accident while riding his motorcycle, which triggered a compounding life-threatening
5 cardiovascular crisis. Father also states that he was recently laid off and has zero income or
6 liquidity. On 6/29/2026, Father received a 3-Day Notice to Pay Rent or Quit from his landlord.
7 The notice states that Father owes \$1,000 for past due rent for June 2026 and an additional \$1,000
8 for rent for July 2026. The notice demands that Father pay \$2,000 by 7/8/2026. Father states that
9 approximately \$170,000 from the sale of the marital residence is being held in escrow. Father
10 states he met and conferred with Mother's attorney prior to filing the ex parte request, but
11 Mother's attorney would not agree to release any funds.
- 12 5) On 7/2/2026, Father filed an Income and Expense Declaration. Father reports no income and no
13 assets. Father states his monthly expenses total \$2,415.
- 14 6) On 7/6/2026, Mother's attorney filed a Responsive Declaration opposing Father's request.
15 Mother's attorney states, "Respondent received a substantial personal injury settlement several
16 years ago and upon information and belief still has a substantial portion of that remaining.
17 Respondent owes petitioner potentially several hundreds of thousands of dollars in child support
18 arrears, spousal support arrears, domestic violence restitution, Family Code 1101 damages,
19 attorney's fees for domestic violence, Family Code 2030 and 271 sanctions. Given (1)
20 Respondent's history of domestic abuse- physical, financial and emotional, (2) the unadjudicated
21 community interests in the personal injury settlement and other community property proceeds, (3)
22 Respondent's failure to provide financial disclosures, (4) evasion of service, disbursing the only
23 known asset to Respondent would leave Petitioner without access to funds to satisfy any future
24 judgment. To allow any release of the proceeds for the respondent would be extremely prejudicial
25 and would constitute harm towards petitioner under the totality of the circumstances and without
26 sufficient evidence of need from Respondent. Certainly no orders should be made on this record
27 on an ex parte basis because Petitioner and the Court need more information on Respondent's
28 financials." Mother's attorney further states that she was in Turkey when she received notice of
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Father's ex parte request. She states she previously notified Father she would be unavailable between 6/23/2026 – 7/28/2026 and requests \$3,000 in attorney's fees sanctions.

7) Per the Temporary Emergency (Ex Parte) Orders filed 7/6/2026, the Court set Father's request for hearing on 8/6/2026 and reserved Mother's request for sanctions.

8) On 7/27/2026, Father filed a Reply Declaration. Father states he is facing the prospect of returning to manual labor, contrary to his physicians' advice due to his serious cardiac condition, because he lacks sufficient funds to support himself. Father states the funds from his prior 2017 personal injury settlement were exhausted years ago. Father states there have been no restraining order requests filed against him by Mother. Father states Mother's attorney's vacation to Turkey is unrelated to his financial crisis and that her request for sanctions is not authorized under *Tenderloin Housing Clinic v. Sparks*. Father argues that, if \$40,000 is distributed to him, approximately \$130,000 will remain in escrow, which adequately protects Mother's potential claims for reimbursement, property equalization, attorney's fees, and other relief.

B. Findings and Order

- 1) Father is authorized to immediately withdraw \$40,000 from the escrow account holding the proceeds from the sale of the residence located at 435 W. 4th St. in Pittsburg, CA.
- 2) Mother shall cooperate in promptly executing any documents and promptly taking any other actions necessary to permit the immediate release of the \$40,000 to Father.
- 3) Mother's request for sanctions is denied.
- 4) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CLAY MONTGOMERY,

Petitioner

VS.

CAITLIN MONTGOMERY,

Respondent

) Case Number: FDI-24-799969

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

- REVIEW OF CUSTODY AND VISITATION

TENTATIVE RULING

The custody and parenting time hearing is continued to **8/13/2026 at 9AM in Department 404** due to the Child Protective Services investigation. The parties shall check the Court's tentative ruling at 2PM on 8/12/2026.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RUMESHA AHMED WHITFIELD,

Petitioner

VS.

JAMES ALISTAIR WHITFIELD,

Respondent

) Case Number: FDI-25-800955

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

PETITIONER'S REQUEST FOR THE COURT TO ISSUE A WORK SEARCH ORDER AND
GAVRON ADMONITION FOR RESPONDENT, AND RESPONDENT'S REQUEST FOR REVIEW
OF TIMESHARE AND CUSTODY AND CHILD AND SPOUSAL SUPPORT, AND PETITIONER'S
REQUEST FOR A LONG-CAUSE SETTING RE: CUSTODY AND TIMESHARE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Custody and Parenting Time

A. Procedural History

- 1) Rumesha Ahmed Whitfield (Mother) and James Whitfield (Father) have one minor child together, Berenice (DOB 8/3/2020, age 6).
- 2) In a 3/9/2026 Stipulation and Order, the parties agreed to "joint parenting" of Berenice while living together "as they have done previously" and also agreed that once Father moves out of the family home, he will have parenting time every weekday from 2PM to 6PM (Fridays until 7:30PM) and Saturday from 8AM to 6PM. (The parties also agreed he would care for the family dog 2 days a week, between 8 and 9AM before the dog's morning walk and returning him 2 days

1 later after the dog's morning walk.) The parties reached various other agreements relating to
2 financial issues. The Court set the matter for a review hearing on all issues for 8/6/2026.

3 3) The Court has received and reviewed the parties' update declarations and their requests and
4 responses regarding an evidentiary hearing and a child custody evaluation or brief focused
5 assessment (BFA). Father states, among other things, that he has not yet been able to move out of
6 the family home because he is not employed and is not receiving spousal support. He requests an
7 order for a 2-2-3 parenting time schedule with a "brief step-up plan." He states that Mother's
8 concerns about his physical and cognitive limitations are overstated and that he is capable of
9 caring for Berenice. He states he generally sees Berenice every day before and after camp and for
10 dinner and spends time with her on either Saturday or Sunday. He states he took her to New York
11 for 5 days in October 2025 and to the UK for 10 days in July 2026 without incident. Father
12 opposes Mother's request for an evidentiary hearing on custody matters; alternatively, he asks for
13 a child custody evaluation or BFA pending and temporary custody orders pending the evidentiary
14 hearing if one is ordered.

15 4) Mother states that when the parties entered into the Stipulation and Order in February 2026 (filed
16 3/9/2026), the parties' understanding was that Father would be moving out of the family home
17 shortly thereafter and that the Court would have 6 months until the 8/6/2026 review hearing to see
18 how Father's parenting time was going before issuing any further custody and parenting time
19 orders. She states that because Father has not moved out and has therefore not yet exercised the
20 parenting time set forth in the Stipulation and Order, there is no need for any modification of his
21 parenting time at this time. She asks that in the event the Court is inclined to increase Father's
22 parenting time, she would like an evidentiary hearing on custody and parenting time.

23 **B. Findings and Orders**

24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
25 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
26 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
27 child is the United States.

28 2) The Court finds it is in Berenice's best interest to maintain the custody and parenting time orders
29 set forth in the 3/9/2026 Stipulation and Order. The parties reached an agreement about what

Father's parenting time would be once he moved out of the family home and requested a review hearing for the Court to review custody and parenting time. Father has not yet moved out of the home and has not yet exercised his parenting time; thus, the Court does not find good cause to modify the 3/9/2026 Stipulation and Order at this time. Father's request for a child custody evaluation or BFA and Mother's request for an evidentiary hearing are denied without prejudice. The custody and parenting time issues are set for a further review hearing on **12/1/2026 at 9AM in Department 404**. At least 10 days before the review hearing, each party shall file an update declaration informing the Court whether Father has moved out of the family home, whether he has begun exercising the parenting time the parties agreed to in the 3/9/2026 Stipulation and Order, and what the parties' requests are regarding custody and parenting time going forward.

II. Child and Temporary Spousal Support

A. Procedural History

- 1) The 3/9/2026 Stipulation and Order outlines the following agreements regarding child and temporary spousal support:
 - a. Father has no claim to retroactive child and spousal support and waives the same.
 - b. No child and spousal support is due to Father until he moves out of the family residence and establishes his own residence. At that time and going forward, Mother shall pay Father \$905 per month in guideline child support and \$3,823 per month for temporary guideline spousal support, for a total of \$4,728 per month, but these payments will terminate on 3/18/2026 due to Mother's loss of employment effective that date.
 - c. On Father vacating the family residence and establishing his own residence, the parties will immediately begin dividing all profits from community property investments. Within 14 days of receipt of such profits, Mother shall transfer to Father his 50% share. Mother shall provide Father with an accounting of the same demonstrating any expenses that were paid and/or profit/income that was received.
 - d. Mother's request for the court to issue a work search order and Gavron admonition for Father, and Father's request for review of timeshare and custody and child and spousal

1 support and Mother's request for a long cause setting re custody and timeshare is set for
2 8/6/2026.

- 3 2) On 7/30/2026, Father filed a Status Declaration stating he has found it extremely difficult to
4 secure alternate housing because he has no employment income and has not been receiving any
5 spousal support. Father states he has been forced to use the little savings he has to pay for living
6 expenses because Mother refuses to pay support to him while they are living together. Father
7 states Mother has demanded that he vacate the residence by 9/30/2026. Father states he is waiting
8 to receive an inheritance from his late father's estate in the amount of \$90,000. Father states he
9 suffered a traumatic brain injury in December 1998 as the result of a serious motor vehicle
10 accident and he experiences difficulty with his memory, information processing, balance, and
11 mobility and he suffers chronic headaches. Father states he last held a position as a product
12 manager for a technology and media company but was terminated in August 2024. Father states
13 he is currently working with a vocational rehabilitation counselor through Sutter Health's Pacific
14 Employment Program (PEP) which assists adults with traumatic brain injuries in preparing for
15 and obtaining active employment. Father states he and his counselor are evaluating whether there
16 is any type of employment he is capable of performing. Father requests the Court deny Mother's
17 request to subject him to a seek work order while he is working with his PEP counselor. Father
18 also states that a Gavron warning is not appropriate because he is only capable of working within
19 the limits of his disability and he is unlikely to reach an earning capacity approaching the marital
20 standard of living. Father states he needs support now in order to relocate.
- 21 3) On 7/30/2026, Father filed an Income and Expense Declaration.
- 22 4) On 7/30/2026, Father filed a Statement of Support Calculation.
- 23 5) On 7/30/2026, Mother filed an Update Declaration. Mother agrees that Father has not been able
24 to secure alternate housing. Mother states Father's initial application to the federal government
25 and state agencies for disability, and subsequent appeal, according to his attorney, have both been
26 rejected. Father has filed a second appeal which could take up to 24 months to receive a decision.
27 Mother believes Father is able to secure employment "given the rejection of the disability
28 applications." Mother states, "until the court can evaluate the testimony and evidence as to
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1 husband's earning capacity, neither spousal nor child support can be determined; and for this
2 reason, wife requests that the matter be set for the long cause hearing."

- 3 6) On 7/31/2026, a Stipulation and Order Re: Health Insurance was entered which provides that
4 Mother shall maintain Father as a covered dependent under her health insurance plan available
5 through her employer Wells Fargo so long as such coverage remains available and until entry of
6 Judgment of Dissolution or Father obtains his own coverage through a job or otherwise. Father
7 shall reimburse Mother for premiums in the amount of \$325.96 per month which shall be paid to
8 Mother no later than the 15th day of every month and Father shall reimburse Mother for his pro-
9 rata share of the actual annual deductible incurred as well as out-of-pocket medical expense
10 incurred. The parties further agree, "Petitioner shall not deduct any claimed health insurance
11 premiums, deductible amounts, or out-of-pocket medical expenses from any spousal support
12 payments otherwise due to Respondent."

- 13 7) Mother did not file a Statement of Support Calculation or Income and Expense Declaration.

14 **B. Findings and Order**

- 15 1) The Court finds that the 3/9/2026 Stipulation and Order was predicated on an expectation that
16 Father would be able to obtain alternate housing. This expectation has proven to be untrue. Father
17 has been unable to secure alternate housing despite his efforts, in part because he is not currently
18 earning an income or receiving support. The Court finds good cause to award temporary spousal
19 support to Father at this time given that Father needs support in order to relocate, Mother has the
20 ability to pay, and Father should not be required to exhaust his savings to pay his living expenses
21 while he is exploring his earning capacity. Father is actively working with his PEP counselor to
22 evaluate the types of employment he is capable of performing, and the Court does not find that
23 Father is presently shirking his obligation to become self-supporting or to support the parties'
24 child. The Court will revisit these issues at the next review hearing.
- 25 2) Effective 8/1/2026, in accordance with the XSpouse calculation attached hereto and incorporated
26 herein, Mother shall pay Father \$4,646 in temporary guideline spousal support per month. One-
27 half shall be due and payable by the 1st and one-half shall be due and payable by the 15th of each
28 month.

- 3) So long as Father remains living in the marital residence and until Father vacates the marital residence, Mother may deduct from Father's monthly spousal support one-half of the carrying costs for the marital residence, including mortgage, property taxes, insurance, as well as one-half of utilities. Mother shall forward to Father the invoices for any items she deducts from Father's monthly support.
- 4) Support for August 2026 shall be paid no later than 8/15/2026.
- 5) The Court declines to order child support at this time given that the parties are currently living together. Once Father vacates the marital residence and begins to exercise the timeshare schedule set forth in the 3/9/2026 Stipulation and Order, Mother shall pay to Father \$1,001 per month in guideline child support in accordance with the attached XSpouse calculation.
- 6) The Court declines to issue a work search order or Gavron admonition at this time. The Court will review child support, temporary spousal support, Mother's request for a work search order, and Mother's request for a Gavron warning at the review hearing on **12/1/2026 at 9:00 AM. in Department 404.**
- 7) At least 20 calendar days prior to the next hearing date, both parties shall file and serve updated Income and Expense Declarations.
- 8) At least 20 calendar days prior to the next hearing date, Father shall file and serve a declaration updating the Court regarding: (1) his efforts to secure alternate housing; (2) his progress with his PEP counselor; (3) any conclusions reached regarding the types of employment he is capable of performing; (4) his anticipated earning capacity; and (5) any material updates regarding child and temporary spousal support. If available, Father shall attach a letter or report from his PEP counselor.
- 9) At least 10 calendar days prior to the next hearing date, Mother shall file and serve a declaration responding to these issues and providing any other relevant updates.
- 10) At least 10 calendar days prior to the next hearing date, both parties shall file and serve Statements of Support Calculation.

1 **III. Preparation of Order**

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3 1) Mother's attorney shall prepare the Findings and Order After Hearing.

4 2) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within

5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other

6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

8 proposed order after hearing directly to the court. Failure to submit the order after hearing within

9 10 days may allow the other party to prepare a proposed order and submit it to the court in

10 accordance with CA Rules of Court, Rule 5.125(d).

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Fixed Shares	Father	Mother	Monthly figures	Cash Flow			
#of children	0	1	2026		Guideline	Proposed	
% time with NCP	26.00 %	0.00 %		Comb. net spendable	15464	15464	
Filing status	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%	
# exemptions	1 *	2 *	Nets(adjusted)	Father			
Wages+salary	0	22917	Father	0	Payment cost/benefit	5647	5647
Self-employed income	0	0	Mother	15464	Net spendable income	5647	5647
Other taxable income	0	0	Total	15464	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	37%	37%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	1001	Total taxes	0	0
401(k) employee contrib	0	1146	S.Clara SS	4646	Dep. exemption value	0	0
Adjustments to income	0	0	Total	5647	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	0	0
CS paid prev marriage	0	0			Mother		
Health insurance	0	510			Payment cost/benefit	-5647	-5647
Other medical expense	0	0			Net spendable income	9817	9817
Property tax expense	0	271			Change from guideline	0	0
Ded interest expense	0	337	Proposed		% of combined spendable	63%	63%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	1001	Total taxes	6943	6943
Qual bus income ded	0	0	SS	4646	Dep. exemption value	0	0
Required union dues	0	0	Total	5647	# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	13366	13366
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Mother pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	25 - 75	0	0	0	Father	1001	Mother	1001	Mother
	26 - 74	0	0	0	Father	1001	Mother	1001	Mother

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER WEI CHENG,

Petitioner

VS.

TOM YEH,

Respondent

) Case Number: FDI-25-801487

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: BIFURCATE AND TERMINATE MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jennifer Wei Cheng (Mother) and Respondent Tom Yeh (Father) married on 11/3/2003. Mother contends the parties separated on 12/20/2020, for a marriage of 16 years and 1 month. Father contends the parties separated on 5/16/2025, for a marriage of 21 years and 6 months. The parties have two minor children, Hampton (DOB: 11/22/2008, age 17) and Harrington (DOB: 8/28/2010, age 15). Mother is represented by attorney Leon Jew. Father is self-represented.
- 2) On for hearing is Mother's Request for Order filed 2/17/2026 asking the Court to bifurcate and terminate the parties' marital status. The Court notes that in the Request for Separate Trial (FL-315) attached to her Request for Order, Mother included no information under the prompt, "All pension or retirement plans in which the community has an interest are listed below or on attachment 1e(2)." However, the Court also notes that on 9/29/2025, Mother filed a Response to Father's Request for Form Interrogatories, Set One. Mother attached to this pleading a Schedule of Assets and Debts signed by Mother under penalty of perjury which lists the following items

1 under the section for “retirement and pensions”: Madison IRA (“SP”) and Madison Roth (“SP”).
2 Mother also stated in this pleading that tax returns for 2023 and 2024 “were not filed yet due to
3 Asking Party’s lack of cooperation to fully disclose his income.”

4 3) On 2/25/2026, Mother filed a Supplemental Declaration stating she would like her former name
5 restored to “Jennifer Wei Cheng.”

6 4) On 4/9/2026, Father filed a Responsive Declaration asking the Court to deny Mother’s request.
7 Father states Mother has “never produced any tax returns, paystubs, or account statements
8 required for the Preliminary Declaration of Disclosure.” Father also states, “Petitioner lists 2
9 pensions in her Schedule of Assets & Debts and has not joined those plans to this action. I request
10 that they be joined and that I be named beneficiary of both plans.” Father further states,
11 “Respondent to be assigned & granted a 50% interest in Petitioner’s Madison IRA & Madison
12 Roth (listed on Petitioner’s Schedule of Assets & Debts dated 7/21/2025).” Father also asks the
13 Court to order Mother to “restore and pay for Respondent’s health insurance,” and order Mother
14 to “return to my mother the property described in my supporting Declaration. Petitioner does not
15 deny this property belongs to my mother.” The Court notes that although Father references a
16 supporting declaration in his Responsive Declaration, no supporting declaration is attached to
17 Father’s Responsive Declaration nor was a supporting declaration separately filed.

18 5) At the prior 4/16/2026 hearing, the Court set a future hearing date of 6/30/2026 and ordered
19 Mother to file and serve: (a) an updated Request for Separate Trial (FL-315) which lists any and
20 all pension or retirement plans in which the community has an interest or which states “none,” (b)
21 an updated Schedule of Assets and Debts (FL-142) which includes as an attachment the latest
22 statements for each financial account included, and (c) an updated Income and Expense
23 Declaration (FL-150) which includes as an attachment Mother’s last two months of paystubs.

24 6) On 6/15/2026, Mother filed and served an update declaration, an updated Income and Expense
25 Declaration, an updated Declaration Regarding Service of Preliminary Declaration of Disclosure,
26 and proofs of service indicating service of these documents on Father. Mother states she has
27 “available statements for some financial accounts.” Mother states Father has not produced his
28 financial disclosures or responded to her requests for discovery.
29

1 7) On 6/23/2026, Father filed a Declaration stating he still has incomplete information regarding
2 Mother's income and assets and that the parties' date of separation remains in dispute. Father
3 states, "The Court previously considered Petitioner's request for bifurcation and determined that
4 additional disclosure was required before such relief should be granted. Petitioner now asks the
5 Court to grant the same relief while the ordered disclosure process remains materially incomplete.
6 Granting bifurcation under these circumstances would effectively reward incomplete compliance
7 and deprive me of information necessary to protect my rights regarding property characterization,
8 tax liabilities, retirement assets, digital assets, reimbursement claims, and the disputed date of
9 separation." Father asks the Court to make the following orders:

10 a. Deny the request without prejudice or continue it for approximately 30 days and direct
11 Mother to serve, within 10 days, the following limited materials necessary to complete
12 the disclosure record and frame appropriate protective orders:

- 13 i. A rental schedule for each income-producing property showing gross receipts,
14 cash expenses, debt service, and net income;
 - 15 ii. Two years of profit-and-loss statements for each self-employed business, or the
16 applicable Schedule C from the latest filed return, together with identification of
17 the business producing the income reported on FL-150;
 - 18 iii. A written identification of each federal and state tax year filed or unfiled since
19 2022, copies of all returns filed within the applicable disclosure period, and
20 records sufficient to explain the disclosed 2023 Franchise Tax Board liability;
 - 21 iv. Current complete statements, account-opening applications, initial-funding
22 records, Forms 5498 and 1099-R, and reasonably available contribution, rollover,
23 transfer, transaction-history, and tracing records for the Madison IRA, Madison
24 Roth IRA, Fidelity, Coinbase, Kraken, Prana Trust, and each other account for
25 which separate-property status is asserted; and
 - 26 v. A complete list of all retirement plans and IRAs, current balances, plan
27 administrators or custodians, and beneficiary designations, so the Court can
28 determine joinder and provisional-order requirements.
- 29

- 1 b. If the Court grants bifurcation now, the Court should enter a written order, including
2 Judicial Council forms FL-347 and FL-348 where applicable, that:
- 3 i. Makes no finding concerning the date of separation or the character, value,
4 ownership, tracing, reimbursement, or division of any asset or debt, and
5 expressly reserves all remaining issues;
- 6 ii. Provides the tax indemnity, health-insurance, retirement, Social Security,
7 beneficiary, probate, individual-retirement-account, and enforcement protections
8 authorized by Family Code section 2337;
- 9 iii. Preserves and secures each party's disputed community interest in retirement,
10 brokerage, digital-asset, trust, and other financial accounts pending final
11 adjudication;
- 12 iv. Prohibits sale, transfer, refinance, further encumbrance, or disposition of 2225
13 Riviera Street and 18792 Galton Lane, or distribution of proceeds relating to those
14 properties, absent written agreement or further court order; and
- 15 v. Requires Petitioner, as the moving party, to prepare, serve, and lodge the
16 proposed status judgment and all protective orders for review before entry.
- 17 8) At the prior 6/30/2026 hearing, following a hearing, the Court adopted its Tentative Ruling and
18 ordered the following:
- 19 a. Mother's Request for Order filed 2/17/2026 is continued a second time to Thursday,
20 9/3/2026 at 9:00 AM in Dept. 404.
- 21 b. At least 20 calendar days prior to the next hearing date, Mother shall file and serve a
22 declaration to which she attaches an updated Request for Separate Trial (FL-315) which
23 lists any and all pension or retirement plans in which the community has an interest. If
24 Mother contends the community has no interest in any pensions or retirement plans, she
25 may write "none." Mother's declaration must also include a list of statements she was not
26 able to include with her second declaration of disclosure, as Mother stated her second
27 disclosure contained available statements for some (but not all) financial accounts. If
28 those statements become available to Mother prior to the next hearing date, Mother shall
29 have those additional statements served on Father.

- 1 c. At least 20 calendar days prior to the next hearing date, Mother shall also file and serve
2 an updated Income and Expense Declaration which includes as attachments:
- 3 i. A schedule showing gross receipts less cash expenses for each piece of rental
4 property;
- 5 ii. A profit and loss statement for the last two years or a Schedule C from Mother's
6 last federal tax return for her business.
- 7 d. All other requests for documents requested by Father are denied as the Court does not
8 find that those documents are required to be served as part of Mother's Preliminary
9 Declaration of Disclosure under Family Code section 2104, and therefore those
10 documents are not required to be served before the Court can bifurcate and terminate
11 marital status under Family Code section 2337(b). If Mother does not provide the
12 additional requested information to Father voluntarily, Father may serve discovery
13 requests.
- 14 e. At least 10 calendar days prior to the next hearing date, Father may file and serve another
15 update declaration.
- 16 9) On 7/21/2026, Mother filed a Request for Order which is calendared for 10/13/2026 at 9:00 AM
17 in Dept. 404. Attached to Mother's new Request for Order is a Request for Separate Trial (FL-
18 315) wherein Mother responded to the prompt: "All pension or retirement plans in which the
19 community has an interest are listed below..." with "NONE. Each party has an IRA established
20 prior to marriage; asserted to be separate property; no community interest claimed. Petitioner has
21 Madison IRA and Madison Roth IRA. Respondent has Fidelity IRA and Fidelity Roth IRA."
22 Also attached to Mother's new Request for Order is a Supplemental Declaration that Mother
23 states she is submitting "in response to the Court's June 30, 2026 Tentative Ruling and in support
24 of my Request for Separate Trial to bifurcate and terminate marital status." Mother states:
25 "Pursuant to the Court's June 30, 2026 Tentative Ruling, I have prepared and attached Exhibit A,
26 consisting of my 2024 and 2025 Rental Profit and Loss schedules, which show the gross rental
27 receipts, rental expenses, and resulting cash flow for my rental property, in compliance with the
28 Court's request... I have also attached Exhibit B, which contains summaries of my 2024 and 2025
29 income and expenses relating to my work income. These summaries reflect the information

1 currently available to me and are submitted in good faith to assist the Court in evaluating my
2 financial circumstances...My request seeks only to terminate the parties' marital status. I am not
3 requesting that the Court divide property, determine reimbursement claims, characterize assets, or
4 resolve any financial disputes at this time. I have already requested in my FL-315 that the Court
5 impose all protective conditions authorized under Family Code section 2337, including
6 protections relating to retirement benefits, health insurance, tax consequences, Social Security
7 benefits, beneficiary designations, probate rights, and enforcement of community property rights.
8 Those statutory protections adequately preserve both parties' interests while allowing the marital
9 status to be terminated... I believe I have substantially complied with the Court's June 30,
10 2026 Tentative Ruling by providing the requested rental schedules and updated financial
11 information. The remaining disputes involve property characterization and financial issues that
12 can be resolved through discovery and future proceedings. Granting bifurcation will not prejudice
13 Respondent because the Court will retain jurisdiction over all remaining issues and the statutory
14 protections under Family Code section 2337 will continue to protect both parties' interests.”

15 10) Per the Proof of Service filed 7/21/2026, Mother’s Request for Order filed 7/21/2026 including
16 the attachments were emailed to Father on 7/21/2026.

17 11) On 7/31/2026, Father filed a declaration stating that he developed an acute respiratory illness on
18 or about 7/10/2026 or 7/11/2026. Father states that as of 7/26/2026 he continued to experience
19 throat pain, coughing, headache, weakness, and blood or blood-streaked mucus. Father states that
20 this illness affected him during the principal preparation period for the August 6 hearing and
21 hindered his ability to seek free, self-help, limited-scope, or other procedural or legal assistance.
22 Father requests a continuance of the 8/6/2026 hearing; however Father states he remains prepared
23 to appear on 8/6/2026 and that if his symptoms persist and the hearing proceeds, he requests
24 permission to appear remotely and take reasonable breaks as needed. Father also states that he
25 received Mother’s recently filed pleadings. Father states Mother has not yet produced: “(a) any
26 statement for the Schwab account identified as community property, the Bank of
27 America/Strategies Group account identified as community property, the Wells Fargo/Strategies
28 Group account identified as community property, the Kraken account identified as separate
29 property, or the Coinbase account identified as separate property; (b) pages 2 through 6 of the

1 Bank of America statement for accounts ending 0054 and 1736, or the remaining pages of the
2 Chase and Citi credit-card statements; (c) a current Fidelity holdings or balance statement, rather
3 than the 2025 tax-reporting document Petitioner produced; (d) any Madison Traditional IRA or
4 Roth IRA statement later than March 31, 2026; or (e) an account-specific list explaining why the
5 later or missing records were not produced.” Father states, “The missing, incomplete, or outdated
6 information affects my ability to evaluate proposed protective conditions and determine whether
7 listed community, investment, retirement, trust, and debt interests require safeguards before
8 marital status is terminated. I am not using this request to seek a new order compelling broad
9 discovery. I ask for adequate preparation time and for compliance with the disclosure obligations
10 the Court already imposed on June 30.”

11 **B. Findings and Order**

- 12 1) Father’s request for a continuance is denied as the Court finds that Father substantively and
13 meaningfully responded to Mother’s additional pleadings filed 7/21/2026. Moreover, the Court
14 finds that any potential prejudice to Father from entry of a status-only judgment is adequately
15 addressed by the statutory protections imposed pursuant to Family Code section 2337(c) in
16 addition to the Court's express reservation of jurisdiction over all remaining issues.
- 17 2) No later than 8/30/2026, Mother shall serve on Father the following additional items he has
18 identified are missing from Mother’s initial disclosure:
 - 19 a. Any statement for the Schwab account identified as community property;
 - 20 b. The Bank of America/Strategies Group account identified as community property;
 - 21 c. The Wells Fargo/Strategies Group account identified as community property;
 - 22 d. The Kraken account identified as separate property;
 - 23 e. The Coinbase account identified as separate property;
 - 24 f. Pages 2 through 6 of the Bank of America statement for accounts ending 0054 and 1736;
 - 25 g. The remaining pages of the Chase and Citi credit-card statements;
 - 26 h. A current Fidelity holdings or balance statement (rather than the 2025 tax-reporting
27 document Father states Mother previously produced)
 - 28 i. Any Madison Traditional IRA or Roth IRA statement later than 3/31/2026

1 3) The Court finds:

- 2 a. Mother filed a Petition requesting Dissolution of Marriage on 5/30/2025, citing
3 irreconcilable differences.
- 4 b. Father filed a Response on 7/9/2025 stating that he denies the grounds supporting
5 Mother's request for dissolution set forth in the Petition.
- 6 c. Under Family Code section 2339(a), the Court first acquired jurisdiction over Father
7 when Father was personally served with the Petition and Summons on 6/8/2025.
- 8 d. Within the Petition and Response, both parties indicate they were residents of California
9 for at least six months and of San Francisco County for at least three months immediately
10 preceding the filing of the Petition.
- 11 e. On 8/14/2025 and on 6/15/2026, Mother filed a Declaration Regarding Service of
12 Declaration of Disclosure stating that her Preliminary Declaration of Disclosure was
13 served on Father by email on 8/14/2025 and 6/15/2026.
- 14 f. Mother has stated under penalty of perjury that there are no pension or retirement plans in
15 which the community has an interest. Mother identifies two IRA accounts that she
16 contends are her separate property. Even assuming, without deciding, that the community
17 has an interest in those IRA accounts, the Court finds they are not the type of retirement
18 plans requiring joinder under Family Code section 2337(d). The characterization and
19 division of those accounts remain reserved.
- 20 4) Based on the foregoing, Mother's request to bifurcate and terminate the parties' marital status is
21 GRANTED with the protections set forth below. Each party is restored to their previous single
22 status as of 8/6/2026. The Court finds this termination date meets the requirement set forth in
23 Family Code section 2339(a).
- 24 5) As set forth in the attached Bifurcation of Status of Marriage or Domestic Partnership (FL-347),
25 the protections of Family Code section 2337(c)(1)-(6) shall apply against Mother until judgment
26 is entered and becomes final on all remaining issues.
- 27 6) The parties are reminded that despite the termination of their marital status, the Standard Family
28 Law Restraining Orders set forth in the Summons continue to apply to both parties per Family
29 Code section 233(a).

1 7) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved
2 under Family Code section 2337(f).

3 8) The Court will prepare the Findings and Order After Hearing as well as the Status Only Judgment
4 and Notice of Entry of Judgment.

PETITIONER: Jennifer Wei Cheng	CASE NUMBER: FDI-25-801487
RESPONDENT: Tom Yeh	

BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☒ petitioner ☐ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 8/6/2026

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

Type of order attached

3a(1)	3a(2)	3a(3)
☐	☐	☐
☐	☐	☐
☐	☐	☐

☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

PETITIONER: Jennifer Wei Cheng	CASE NUMBER: FDI-25-801487
RESPONDENT: Tom Yeh	

5. b. ☒ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☒ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☒ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

PETITIONER: Jennifer Wei Cheng	CASE NUMBER:
RESPONDENT: Tom Yeh	FDI-25-801487

5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached:

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARTINE ALLYSON PARIS,

Petitioner

VS.

ANDREW MARC KLINMAN,

Respondent

) Case Number: FDI-25-801871

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
PROPERTY CONTROL

TENTATIVE RULING

**The parties are ordered to appear in-person or via Zoom video at 9AM on 8/6/2026 in
Department 404 to set an evidentiary hearing.**

**If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for
Remote Appearance in San Francisco Family Court set forth above.**

A. Procedural History

- 1) Petitioner Martine Paris (Wife) and Respondent Andrew Klinman (Husband) married on 5/6/1995. Wife contends the parties separated on 8/27/2025, for a marriage of 30 years and 3 months. Husband stated “TBD” with respect to his purported date of separation although he acknowledges the parties were married for 20+ years. The parties have one adult child and no minor children. Wife is represented by Laughlin, Legal, PC: Family Law Group. Husband is represented by Whiting, Ross, Abel & Campbell, LLP.
- 2) There have been no orders made in this case to date.
- 3) On for hearing is Wife’s Request for Order filed 4/21/2026 seeking:
 - a. Temporary guideline spousal support of \$19,358 per month;

- 1 b. Exclusive temporary use, possession, and control of the property located at 1238 and
2 1238A 47th Ave. San Francisco, CA 94122 and an order requiring Husband to vacate the
3 residence;
- 4 c. Husband to make the following payments and provide proof of payment: \$4,858 per
5 month for mortgage for 2039 45th Ave., \$3,122.90 per month for home insurance for
6 2039 45th Ave., \$1,937 per month for earthquake insurance for 2039 45th Ave.,
7 \$7,368.64+ per month for property taxes for 2039 45th Ave., \$32,035+ for Chase Visa
8 #6785, \$27,849+ for Chase Visa #9820, and \$28,101 for Chase Visa #3531; and
9 d. \$150,000 in need-based attorney's fees and costs.
- 10 4) On 4/21/2026, Wife filed an Income and Expense Declaration.
- 11 5) On 4/21/2026, Wife filed a Memorandum of Points and Authorities.
- 12 6) On 4/21/2026, Wife's attorney (Andrew Volkov of Laughlin Legal) filed a declaration in support
13 of Wife's request for spousal support and attorney fees. Wife's attorney states, "Petitioner
14 requests an award of \$150,000 in attorney's fees and costs. In my professional judgment, this
15 amount is reasonably necessary to cover the outstanding work-in-progress, conduct discovery,
16 investigate Respondent's financial activity, and address the complex financial issues in this case."
- 17 7) On 7/24/2026, Husband filed a Responsive Declaration asking the Court to:
- 18 a. Deny Wife's request for spousal support "for periods when we occupy two separate
19 dwellings in the same duplex at 47th Avenue and I pay the mortgage, property taxes,
20 utilities and insurance for the entire duplex...and during periods when I pay the joint
21 credit cards that Petitioner uses for her living expenses;"
- 22 b. Grant Wife's request for temporary spousal support in the amount calculated by my
23 family law forensic, CPA Spaete (\$10,732 per month), but only for periods where the
24 parties share equally all Joint Duplex Costs and Husband does not pay Wife's credit card
25 expenditures.
- 26 c. Order Wife to undergo a Vocational Evaluation conducted by Marlis Bruns;
- 27 d. Issue a Gavron warning, and a related Marriage of McElwee (1988) 197 Cal.App.3d 902
28 warning to Wife that "improvident mismanagement of assets" may justify termination of
29 spousal support;

- e. Deny Wife's request for need-based attorney's fees.
- 8) On 7/24/2026, Husband filed an Income and Expense Declaration.
- 9) On 7/24/2026, Husband filed a Declaration in Support of Husband's Request for Attorney's Fees.
- 10) On 7/24/2026, Husband filed a Memorandum of Points and Authorities.
- 11) On 7/24/2026, Husband filed a Declaration of Alex Spaete, CPA-ABV, CITP on Income Available for Support. Mr. Spaete includes a proposed XSpouse calculation showing monthly guideline spousal support owed by Husband of \$10,732.
- 12) On 7/30/2026, Wife filed a Reply Declaration. Wife states she is withdrawing her request for exclusive use of the property located at 1238 and 1238A 47th Ave. San Francisco, CA 94122. Wife now requests temporary spousal support of no less than \$27,757 per month (per an updated guideline calculation) retroactive to 8/27/2025 (the date she filed her Petition for Dissolution), \$165,282 in attorney's fees incurred to date, and \$150,000 in estimated attorney's fees and costs through trial.
- 13) On 7/30/2026, Wife's attorney (Robert Rathmell of Laughlin Legal) filed a Declaration in Support of Petitioner's Request for Attorney's Fees and Costs. Mr. Rathmell states, "To date, Ms. Paris has incurred professional fees and costs in the amount of \$165,282 which is \$140,282 plus about \$25,000 of work-in-progress (WIP). She also paid a retainer to our firm in the amount of \$20,000 and received a refund of her retainer from JKZ in the amount of \$13,834. We estimate that prospective fees in the amount of \$150,000 will be necessary to conclude the case."
- 14) On 7/30/2026, Wife filed a Reply Memorandum of Points and Authorities.
- 15) On 7/30/2026, Wife filed a Declaration of Scott C. Stewart, CPA, Regarding Income Available for Support.
- 16) On 7/30/2026, Wife filed a Statement of Support Calculations showing monthly guideline spousal support owed by Husband of \$27,757 (based upon Scott Stewart, CPA's report).
- 17) On 7/30/2026, Wife filed an updated Income and Expense Declaration.
- 18) On 8/3/2026, Husband filed an Objection to Declaration of CPA Scott C. Stewart and Request for Evidentiary Hearing. Husband states that CPA Stewart's declaration was not filed 16 Court days before the hearing, is not a proper reply, and deprives Husband of the opportunity to meaningfully respond. Husband states he "objects to CPA Stewart's declaration due to lack of

1 foundation, and improper expert opinion. CPA Stewart apparently states certain conclusions
2 about Respondent's 'income' in 2025. (Actually, CPA Stewart's opinion is based on withdrawals
3 Respondent made in 2025 from his business accounts, which is not 'income' at all.) Crucially,
4 CPA Stewart fails to disclose the methodology, reasoning, or analysis by which he converted
5 referenced financial records into an 'income' figure, in violation of Cal. Evid. Code §§ 801(b)
6 and 802, and Cal. Rules of Court, rule 5.111(b)(2). If you search CPA Stewart's declaration to
7 ascertain which specific records he relied upon, or to double check his arithmetic, you would
8 search in vain." Husband asks the Court to strike CPA Stewart's declaration. In the alternative,
9 Husband requests an evidentiary hearing so that his expert CPA Alex Spaete can testify regarding
10 the errors and omissions in CPA Stewart's report.

11 19) On 8/4/2026, Wife filed an Evidentiary Objection and Motion to Strike. Wife asks the Court to
12 strike Husband's expert's report (Alex Spaete, CPA) on the grounds of hearsay, multiple hearsay,
13 case specific hearsay, lack of foundation, and unqualified expert opinion, or in the alternative to
14 set this matter for an evidentiary hearing so that both accountants can testify.

15 **B. Findings and Order**

- 16 1) The parties' requests to strike the declarations of CPA Spaete and CPA Stewart are denied. The
17 Court finds that the competing expert opinions are more appropriately addressed through an
18 evidentiary hearing than by striking either declaration.
- 19 2) Wife's request for temporary spousal support retroactive to the date she filed her Petition for
20 Dissolution is denied. The Court reserves jurisdiction to determine temporary spousal support for
21 the period 4/21/2026 (the date Wife filed her Request for Order) through 7/30/2026 at the
22 evidentiary hearing described below. Once a final temporary spousal support figure has been
23 determined, the Court intends to deduct from any spousal support arrears owed by Husband for
24 the period 4/21/2026 – 7/30/2026: (a) Wife's one-half share of any amounts Husband paid
25 towards the parties' joint living expenses and (b) any payments made by Husband during the
26 period 4/21/2026 – 7/30/2026 for credit card charges made by Wife.
- 27 3) Pending the evidentiary hearing and effective 8/1/2026, Husband shall pay to Wife temporary
28 guideline spousal support in the amount of \$10,732 per month in accordance with the XSpouse
29

1 calculation attached to CPA Alex Spaete's declaration filed 7/24/2026. One-half shall be due and
2 payable by the 1st and one-half shall be due and payable by the 15th of each month.

- 3 4) So long as the parties remain living in their current duplex, Husband may deduct from Wife's
4 monthly spousal support one-half of the carrying costs for the duplex, including mortgage,
5 property taxes, insurance, as well as one-half of utilities. Husband shall forward to Wife the
6 invoices for any items he deducts from Wife's monthly support.
- 7 5) Wife's request that the Court order Husband to make the following payments is denied: \$32,035+
8 for Chase Visa #6785, \$27,849+ for Chase Visa #9820, and \$28,101 for Chase Visa #3531. The
9 parties shall meet and confer regarding whether Wife would like Husband to continue to make the
10 monthly payments on their joint credit cards for charges made by Wife (and if so those payments
11 shall be deducted from Wife's monthly support going forward) or whether Wife will assume the
12 payments on those charges going forward.
- 13 6) Husband's request that Wife undergo a vocational evaluation with Marlis Bruns is hereby
14 granted. Marlis Bruns is hereby appointed as the Court's Evidence Code section 730 expert to
15 perform a vocational evaluation of Wife. The parties shall share the cost of the vocational
16 evaluation equally. Husband shall advance the cost of the vocational evaluation. Wife's one-half
17 share of the cost of the evaluation shall be paid from her share of the community estate during the
18 final accounting in this case. Ms. Bruns shall take into consideration any medical conditions of
19 Wife when determining Wife's earning capacity. Wife shall submit to a vocational evaluation
20 with Ms. Bruns forthwith and Wife shall promptly respond to all requests for information and
21 documentation by Ms. Bruns. The Court would like for the vocational evaluation to be completed
22 prior to the evidentiary hearing. Effective immediately, both parties shall be CC'd on all written
23 communication with Ms. Bruns.
- 24 7) Regarding Wife's request that Husband make the following payments and provide proof of
25 payment (\$4,858 per month for mortgage for 2039 45th Ave., \$3,122.90 per month for home
26 insurance for 2039 45th Ave., \$1,937 per month for earthquake insurance for 2039 45th Ave.),
27 the Court orders Husband to continue managing the 2039 45th Ave. rental property as he has been.
- 28 8) As Wife recently materially altered her request for need-based attorney's fees and costs (and filed
29 an updated Income and Expense Declaration with new information on 7/30/2026), the Court finds

1 good cause to continue the hearing on Wife's request for need-based attorney's fees and costs to
2 **Tuesday, 10/20/2026 at 9:00 AM in Dept. 404.** At least 20 calendar days prior to the next
3 hearing date, Wife's attorney may file and serve an updated declaration (not to exceed 5 pages in
4 length, not including exhibits) in support of Wife's request for fees which may include his
5 estimate regarding attorney's fees to be incurred for him to prepare for and represent Wife at the
6 upcoming long-cause hearing. At least 10 calendar days prior to the next hearing date, Husband
7 may file and serve a declaration (not to exceed 5 pages, not including exhibits) providing any
8 updated response to Wife's attorney's fees request.

9 9) The Court will set an evidentiary hearing on the following issues: (a) temporary spousal support
10 from 4/21/2026 and going forward, (b) any arrears or credits owed for temporary spousal support,
11 (c) whether to impute income to Wife, and (d) whether Wife should receive a Gavron warning
12 and a warning under Marriage of McElwee. **The parties are ordered to appear at the 8/6/2026**
13 **hearing to set the evidentiary hearing.**

14 10) The parties shall use their best efforts to meet and confer (which may include setting up a meeting
15 with the attorneys, parties, and their experts) regarding the issues of temporary spousal support
16 and Husband's income available for support in advance of the evidentiary hearing.

17 11) Husband's attorney shall prepare the Findings and Order After Hearing.

18 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
19 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
20 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
21 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
22 proposed order after hearing directly to the court. Failure to submit the order after hearing within
23 10 days may allow the other party to prepare a proposed order and submit it to the court in
24 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANIEL ZIVNEY,

Petitioner

VS.

CAROLYN HO,

Respondent

) Case Number: FDI-25-802197

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Daniel Zivney (Father) and Respondent Carolyn Ho (Mother) have one minor child together, Tai (DOB 3/9/2016, age 10).
- 2) On for hearing is Father's ex parte request for joint legal custody and sole physical custody of Tai with parenting time for Mother from Friday school pick up to Sunday at 7PM until she shows, after taking parenting classes and enrolling in therapy, that she is capable of caring for Tai for extended periods of time. Mother opposes this request, stating the parties have followed a 2-2-3 parenting time schedule for the last 1.5 years, that despite some issues she has had with Tai, she is fully capable of caring for him, and that the fact that Father thinks she should have Tai for an extended period of time (all weekends) shows he does not think Tai is at risk while in her care. The Court has reviewed and considered all of the parties' submissions.
- 3) The Court denied Father's ex parte request pending a hearing on the Court's regular calendar. The matter was inadvertently set for 8/6/2026 (the Court's Tuesday/Thursday law and motion

calendar) instead of the Monday readiness calendar, so the parties have not attended orientation and mandatory mediation.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The parties are ordered to attend orientation and mandatory mediation with Family Court Services (FCS).
- 3) Orientation: **On any Monday in August (8/10, 8/17 or 8/24)**, the parties shall attend orientation via Zoom video **from 10:45AM to 12PM** by texting their name and email address to FCS at (415) 238-3623 before 10AM on the Monday they choose to attend orientation. The parties are not required to attend orientation on the same Monday. Orientation is designed to provide information to the parties on how to work together towards reaching an agreement regarding custody and parenting time.
- 4) Mediation: The parties shall attend mediation via Zoom video with FCS mediator Jeysa Martinez on **9/15/2026 at 1:30PM**. If that date/time does not work for the parties, they shall call FCS immediately (on or before 8/7/2026) at (415) 238-3623 to reschedule the mediation.
- 5) The matter is continued to **10/6/2026 at 9AM in Department 404**. At least 10 days before the 10/6/2026 hearing, the parties may file brief update declarations informing the Court of any new developments and any modifications to their custody and parenting time-related requests.
- 6) Pending the 10/6/2026 hearing, the Court finds it is in Tai's best interest for the parties to temporarily share joint legal and physical custody of Tai on a 2-2-3 parenting time schedule. The parties may agree, in writing, to a different schedule at any time, including before and after mediation.
- 7) Father's attorney shall prepare the Findings and Order After Hearing.
- 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).